

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
July 16, 2026
8:30 a.m./1:30 p.m.

21. ADRIANA YANEZ V. JULIAN SILVA

26FL0113

Petitioner filed a Request for Order (RFO) on February 6, 2026, seeking child custody and child support orders. Petitioner concurrently filed an Income and Expense Declaration. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on February 23, 2026, and a review hearing on April 23, 2026. Proof of Service shows Respondent was served with some of the required documents on February 21, 2026. Respondent was not served with the referral to CCRC.

Only Petitioner appeared at CCRC on February 23, 2026. As such, a single parent report was filed with the court on April 20, 2026. It was mailed to the parties the same day.

On April 23, 2026, the court adopted its tentative ruling, rereferring the parties to CCRC, and setting a review hearing on July 16th.

On May 4, 2026, the court issued an ex parte minute order changing the CCRC appointment location to South Lake Tahoe. The parties were informed that they were authorized to appear by phone, and to contact the court directly to provide their current phone number to the court. Petitioner's copy was emailed to her at the email address on file. Respondent's copy was mailed to his address of record.

Neither party appeared at the CCRC appointment.

Petitioner filed a Declaration on June 29, 2026. It was served on Respondent the same day. Petitioner asserts she was never informed of the change in location of the CCRC report.

Respondent has not filed a Responsive Declaration or an Income and Expense Declaration.

The court has reviewed and considered the filings as outline above. The court finds Petitioner's request for sole legal and physical custody is in the best interests of the minor. The court adopts Petitioner's request for Respondent's parenting time. Respondent must request parenting time 48 hours in advance. Respondent must specify a date and time between the hours of 9:00 AM and 6:00 PM. The parties are to agree to the location. Petitioner shall provide transportation to and from the visit.

As to Petitioner's request to modify child support, the request is denied. Petitioner asserts in her request there are child support orders in Sacramento County. As such, those orders must be modified in Sacramento County.

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All prior orders not in conflict with these orders remain in full force and effect. Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #21: THE COURT FINDS PETITIONER'S REQUEST FOR SOLE LEGAL AND PHYSICAL CUSTODY IS IN THE BEST INTERESTS OF THE MINOR. THE COURT ADOPTS PETITIONER'S REQUEST FOR RESPONDENT'S PARENTING TIME. RESPONDENT MUST REQUEST PARENTING TIME 48 HOURS IN ADVANCE. RESPONDENT MUST SPECIFY A DATE AND TIME BETWEEN THE HOURS OF 9:00 AM AND 6:00 PM. THE PARTIES ARE TO AGREE TO THE LOCATION. PETITIONER SHALL PROVIDE TRANSPORTATION TO AND FROM THE VISIT.

AS TO PETITIONER'S REQUEST TO MODIFY CHILD SUPPORT, THE REQUEST IS DENIED. PETITIONER ASSERTS IN HER REQUEST THERE ARE CHILD SUPPORT ORDERS IN SACRAMENTO COUNTY. AS SUCH, THOSE ORDERS MUST BE MODIFIED IN SACRAMENTO COUNTY.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THESE ORDERS REMAIN IN FULL FORCE AND EFFECT. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.